

Central Valley Regional Water Quality Control Board

23 September 2025

Jose Velasquez
California Department of Transportation
1352 West Olive Avenue
Fresno, CA 93778

CERTIFIED MAIL
7020 0640 0002 1958 7281

REVISED NOTICE OF APPLICABILITY (NOA), STATE WATER RESOURCES CONTROL BOARD ORDER WQ 2014-0153-DWQ, GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS, CH WARLOW SAFETY ROADSIDE REST AREA, ONSITE WASTEWATER TREATMENT SYSTEM, TULARE COUNTY

On 28 March 2019, the Central Valley Regional Water Quality Control Board (Central Valley Water Board) issued Notice of Applicability (NOA) 2014-0153-DWQ-R5296 to the California Department of Transportation (Discharger) for the CH Warlow Safety Roadside Rest Area (Warlow SRRA) Onsite Wastewater Treatment System (OWTS). The 2019 NOA enrolled the OWTS under State Water Resources Control Board (State Water Board) Water Quality Order 2014-0153-DWQ, *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). On 22 January 2024, the Discharger submitted a technical report, titled “*Sewage Disposal System Engineer’s Report for the Warlow Rest Area*,” requesting updated coverage under the General Order for OWTS upgrades. The technical report was prepared by Juan Torres, a California registered civil engineer (RCE 73048). Subsequently, an updated Form 200 was submitted on 23 June 2025.

Based on the information provided, the Facility treats and disposes less than 100,000 gallons of domestic wastewater per day and is therefore eligible for coverage under the General Order. This letter serves as formal notice that the General Order is applicable to your system and the wastewater discharge described in the January 2024 technical report. You are hereby assigned enrollee number **2014-0153-DWQ-R5296-01** for your system. Please note that issuance of this NOA and the attached Monitoring and Reporting Program (MRP) revise NOA 2014-0153-DWQ-R5296, and its associated MRP.

You should familiarize yourself with the entire General Order and its attachments enclosed with this letter, which describe mandatory discharge and monitoring requirements. Sampling, monitoring, and reporting requirements applicable to your treatment and disposal methods must be completed in accordance with the appropriate treatment system sections of the General Order and the attached

MRP No. 2014-0153-DWQ-R5296-01. This MRP was developed after consideration of your waste characterization and site conditions described in the attached memorandum.

BACKGROUND

The Discharger owns and operates the Warlow SRRA and the associated OWTS, which provides a comfort station to the traveling public. The Warlow SRRA was originally constructed in 1967 and is on the east side of Highway 99 (Post Mile Marker 52) about 2.5 miles south of Kingsburg in Tulare County as shown in **Attachment A**.

The previous NOA issued for the OWTS authorized the discharge of up to 6,000 gpd of domestic wastewater from toilets, urinals, and sinks to a leach field at the Warlow SRRA. The OWTS consisted of two 4,500-gallon capacity (total capacity of 9,000 gallons) septic tanks, from which wastewater was discharged into a leach field with 750 linear feet of leach field trench (Leach Field A).

DESCRIPTION OF DISCHARGE

The Discharger completed upgrades to the Warlow SRRA in early 2025 to reduce the volume of wastewater flow through the OWTS by installing low flow urinals (0.11 gallons per flush) and toilets (1.28 gallons per flush). In addition, OWTS upgrades were also completed to treat the higher strength wastewater associated with the low flow equipment by installing enhanced primary and secondary treatment processes. With the changes to the OWTS system and estimated projected increase in usage over the next 30 years, the Discharger estimates that the future average and peak water usage for this Facility will be 1,300 gpd and 3,400 gpd, respectively.

OWTS upgrades include replacement of septic tanks and leach field, and the addition of equalization and a recirculating packed bed filter system. In total, treatment system component upgrades have resulted in a maximum total capacity of almost 26,000 gallons. A process flow diagram of the OWTS, with upgrades, is included as **Attachment B**.

Wastewater generated at the comfort stations is now sent to a five-chamber 10,000-gallon septic tank with two upflow contact chambers and two upflow media filters to increase the removal of small particles and provide primary treatment. Additionally, biofilm growth in the up-flow media filters is intended to aid further removal of dissolved organic matter. Septic tank effluent is then sent to a new 4,000-gallon equalization tank prior to secondary treatment, which consists of a recirculating packed bed filter system with an approximate 11,900-gallon capacity. After, the wastewater is directed to a new 2,261 square-foot pressure dosed leach field that includes 800-linear feet lines of infiltration chambers with an observation well on each line. The new leach field system was designed considering an equalized flow of 1,551 gpd. Leach Field A is available for overflow protection for the equalization tank, if necessary, but will not be used as the primary means for treated effluent disposal.

FACILITY SPECIFIC REQUIREMENTS AND EFFLUENT LIMITATIONS

The Discharger shall maintain exclusive control over the discharge and shall comply with terms and conditions of this NOA, General Order 2014-0153-DWQ, with all attachments and MRP No. 2014-0153-R5296-01. In accordance with Section B.1.a of the General Order, effluent flow to the new leach field shall not exceed a **monthly average daily discharge of 1,551 gpd**. In accordance with the requirements of the General Order this NOA does not include a nitrogen effluent limitation since the design flow rate to the leach field is less than 20,000 gpd.

The General Order states in Section B.1 that the Discharger shall comply with the setbacks as described in Table 3 of the General Order. This table summarizes different setback requirements for wastewater treatment system equipment, activities, land application areas, and storage and/or treatment ponds from sensitive receptors and property lines where applicable. The Discharger shall comply with the applicable setback requirements, as summarized in the following table:

Table 1 - Setback Requirements

Equipment or Activity	Domestic Well	Flowing Stream/	Ephemeral Stream Drainage	Property Line
Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System	150 ft	50 ft	50 ft	5 ft
Leach Field	100 ft	100 ft	50 ft	5 ft

The Discharger shall comply with all applicable sections of the General Order, including:

- Section B.2 – Septic Systems
- Section B.6 – Subsurface Disposal Systems
- Section B.8 – Sludge/Solids/Biosolids Disposal

Provision E.1 of the General Order requires dischargers enrolled under the General Order to prepare and implement the following reports within **90 days** of the issuance of the NOA.

- Spill Prevention and Emergency Response Plan
- Sampling Analysis Plan
- Sludge Management Plan

A copy of the Spill Prevention and Emergency Response Plan, the Sampling and Analysis Plan shall be maintained at the treatment facility and shall be presented to the Regional Water Board staff upon request. The sludge management plan shall be submitted to the Central Valley Water Board **by 22 December 2025**.

As stated in Section E.2.w., in the event any change in control or ownership of the Facility or wastewater disposal areas, the Discharger must notify the succeeding owner or operator of the existence of this General Order by letter, a copy of which shall be immediately forwarded to the Central Valley Water Board Executive Officer.

Failure to comply with the requirements in this NOA, General Order 2014-0153-DWQ, with all attachments, and **MRP No. 2014-0153-DWQ-R5296-01** could result in an enforcement action as authorized by provisions of the California Water Code. Discharge of wastes other than those described in this NOA is prohibited. If the method of waste disposal changes from that described in this NOA, you must submit a new Report of Waste Discharge describing the new operation.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. You must notify this office in writing if the discharge regulated by the General Order ceases, so that we may terminate coverage and avoid unnecessary billing.

On 31 May 2018, the Central Valley Water Board adopted Basin Plan amendments incorporating new strategies for addressing ongoing salt and nitrate accumulation in the Central Valley as part of the Central Valley Salinity Alternatives for Long-Term Sustainability (**CV-SALTS**) initiative. Further details of these strategies are discussed in the enclosed memorandum. As these strategies are implemented, the Central Valley Water Board may find it necessary to modify the requirements of this NOA to ensure the goals of the Salt and Nitrate Control Programs are met.

All regulatory documents, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50 MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50 MB or larger should be transferred to a disk and mailed to the Central Valley Water Board office at 1685 E Street, Fresno, CA 93706. To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15

Place ID: 719040

Facility Name: CH Warlow Safety Roadside Rest Area OWTS

Order: 2014-0153-DWQ-R5296-01

All documents, including responses to inspections and written notifications, submitted to comply with this NOA shall be directed, via the paperless office system, to the Compliance and Enforcement Unit, attention to Omar Mostafa. Mr. Mostafa can be reached at (559) 445-5197 or Omar.Mostafa@waterboards.ca.gov. Questions regarding the permitting aspects of the NOA, and notification for termination of coverage under the Small Domestic General Order, shall be directed, via the paperless office system, to the

WDR Permitting Unit, attention Salvador Vargas. Salvador Vargas can be reached at (559) 444-2488 or by email at Salvador.Vargas@waterboards.ca.gov.

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Resources Control Board to review the action in accordance with California Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Resources Control Board must receive the petition by 5:00 p.m., 30 days after the date of this NOA, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Resources Control Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the internet at [Copies of the laws and regulations applicable to filing petitions](https://www.waterboards.ca.gov/public_notices/petitions/water_quality) (https://www.waterboards.ca.gov/public_notices/petitions/water_quality) or will be provided upon request.

In order to conserve paper and reduce mailing costs, a paper copy of General Order WQO 2014-0153-DWQ has been sent only to the Discharger. Others are advised that the [General Order](#) is available on the State Water Board's website (http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf).

If you have any questions regarding this matter, please contact Salvador Vargas by phone at (559) 444-2488, or by email at Salvador.Vargas@waterboards.ca.gov.

Original Signed by Alexander S. Mushegan
For Patrick Pulupa
Executive Officer

(see attachments, enclosures, and cc's on next page)

Attachments:

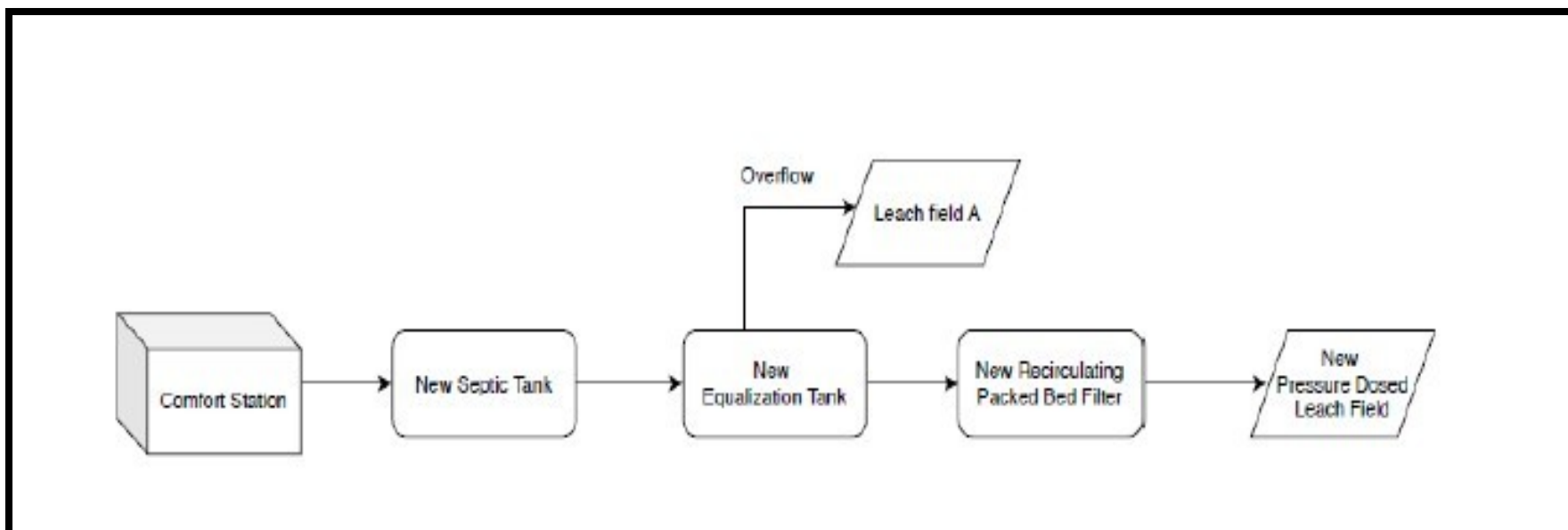
- Attachment A – Site Location Map
- Attachment B – Process Flow Diagram

Enclosures:

- Revised Monitoring and Reporting Program 2014-0153-DWQ-R5296-01
- Staff Review Memorandum for CH Warlow Roadside Safety Rest Area
- State Water Resources Control Board Order WQ 2014-0153-DWQ
(Discharger only)

cc's:

- Adam Forbes, State Water Resources Control Board, Division of Drinking Water
(via email)
- Chris Moskal, State Water Resources Control Board, OCC, Sacramento (via
email)
- Omar Mostafa, Central Valley Water Board, Fresno (via email)
- RB5S-cvsalts@waterboards.ca.gov
- Stephanie Torres, State Water Resources Control Board
- Laura Mahoney, California Department of Transportation (via email)
- Gerhard Panuschka, California Department of Transportation (via email)
- Tulare County Public Works Department
- Tulare County Environmental Health Division
- Debbie Webster, Central Valley Clean Water Association (via email)



Attachment B - PROCESS FLOW DIAGRAM

NOTICE OF APPLICABILITY 2014-0153-DWQ-R5296-01

Drawing Reference: Caltrans Sewage Disposal System Engineers Report

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

**REVISED MONITORING AND REPORTING PROGRAM NO. 2014-0153-DWQ-R5296-01
FOR**

**CALIFORNIA DEPARTMENT OF TRANSPORTATION
CH WARLOW SAFETY ROADSIDE REST AREA
TULARE COUNTY**

This Monitoring and Reporting Program (MRP) describes requirements for monitoring the CH Warlow Safety Roadside Rest Area (Warlow SRRA) Onsite Wastewater Treatment System (OWTS). This MRP is issued pursuant to Water Code section 13267. The California Department of Transportation (Discharger) shall not implement any changes to this MRP unless and until a revised MRP is issued by the Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board) or Executive Officer.

Section 13267 of the California Water Code states, in part:

“In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge, waste outside of its region that could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports and shall identify the evidence that supports requiring that person to provide the reports.”

Section 13268 of the California Water Code states, in part:

“(a) Any person failing or refusing to furnish technical or monitoring program reports as required by subdivision (b) of Section 13267 or failing or refusing to furnish a statement of compliance as required by subdivision (b) of Section 13399.2, or falsifying and information provided therein, is guilty of a misdemeanor and may be liable civilly in accordance with subdivision (b).

(b)(1) Civil liability may be administratively imposed by a regional board in accordance with Article 2.5 (commencing with section 13323) of Chapter 5 for a violation of subdivision (a) in an amount which shall not exceed one thousand dollars (\$1,000) for each day in which the violation occurs.”

The Discharger owns and operates the Warlow SRRA and the OWTS that is subject to Notice of Applicability (NOA) 2014-0153-DWQ-R5296-01. The NOA enrolls the Facility under State Water Resources Control Board Order WQ 2014-0153-DWQ, *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). The reports required in this MRP are necessary to ensure that the Discharger complies with the NOA and General Order. Pursuant to Water Code section 13267, the Discharger shall implement this MRP and shall submit the monitoring reports described herein.

All samples shall be representative of the volume and nature of the discharge or matrix of material sampled. The name of the sampler, sample type (grab or composite), time, date, location, bottle type, and any preservative used for each sample shall be recorded on the sample chain of custody form. The chain of custody form must also contain all custody information including date, time, and to whom samples were relinquished. If composite samples are collected, the basis for sampling (time or flow weighted) shall be approved by Central Valley Water Board staff.

Field test instruments (such as those used to test pH, dissolved oxygen, and electrical conductivity) may be used provided that they are used by a State Water Resources Control Board, Environmental Laboratory Accreditation Program (ELAP) certified laboratory, or:

1. The user is trained in proper use and maintenance of the instruments.
2. The instruments are field calibrated prior to monitoring events at the frequency recommended by the manufacturer.
3. Instruments are serviced and/or calibrated by the manufacturer at the recommended frequency; and
4. Field calibration reports are maintained and available for at least three years.

If monitoring consistently shows no significant variation in magnitude of a constituent concentration or parameter after at least 12 months of monitoring, the Discharger may request this MRP be revised to reduce monitoring frequency. The proposal must include adequate technical justification for reduction in monitoring frequency.

TREATMENT SYSTEM MONITORING

Effluent Monitoring

Effluent samples shall be collected from a location that is representative of the treated effluent after the recirculating packed bed filter and prior to being distributed to the leach field system. At a minimum, septic system monitoring shall include the following:

Table 1 – Effluent Monitoring

Parameter	Units	Sample Type	Sampling Frequency	Reporting Frequency
Flow Rate	gpd	Metered (see 1 below)	Continuous	Quarterly
Electrical Conductivity (EC)	µmhos/cm	Grab	Quarterly	Quarterly
Biochemical Oxygen Demand (BOD)	mg/L	Grab	Quarterly	Quarterly
Total Nitrogen	Mg/L	Grab	Quarterly	Quarterly
Total Suspended Solids (TSS)	mg/L	Grab	Quarterly	Quarterly

1. Flow rate may be metered or estimated based on potable water supply meter readings or other approved method. The method of measurement shall be reported in the required self-monitoring reports.

Additionally, the septic tank shall be inspected and/or pumped at least as frequently as described in Table 2 below. Inspections of sludge and scum depth are not required if the tank is pumped at least annually.

Table 2 – Septic Tank Monitoring

Parameter	Units	Sample Type	Sampling Frequency	Reporting Frequency
Sludge depth and scum thickness in one compartment of each tank	Feet	Staff Gauge	Annually	Annually
Distance between bottom of scum layer and bottom of outlet device	Inches	Staff Gauge	Annually	Annually
Distance between top of sludge layer and bottom of outlet device	Inches	Staff Gauge	Annually	Annually
Effluent filter condition (if equipped, clean as needed)	N/A	N/A	Annually	Annually

Septic tanks shall be pumped when any one of the following conditions exists:

1. The combined thickness of sludge and scum exceeds one-third of the tank depth of the first compartment.
2. The scum layer is within three inches of the outlet device.

3. The sludge layer is within eight inches of the outlet device.

If a septic tank is pumped during the year, the pumping report shall be submitted with the annual report. All pumping reports shall be submitted with the next regularly scheduled monitoring report. At a minimum, the record shall include the date, nature of service, service company name, and service company license number.

SUBSURFACE DISPOSAL AREA

In general, monitoring shall be sufficient to determine if wastewater is evenly applied, the disposal area is not saturated, burrowing animals and/or deep-rooted plants are not present, and odors are not present. Inspection of dosing pump controllers, automatic distribution valves, etc. is required to maintain optimum treatment in the disposal area (and any sand or media filter, if present). Monitoring of the leach field systems shall, at a minimum, included the monitoring specified in Table 2.

Table 3 - Subsurface Disposal Area Monitoring

Constituent	Inspection Frequency	Reporting Frequency
Pump Controllers, Automatic Valves, etc.	Quarterly	Quarterly
Nuisance Odor Condition	Quarterly	Quarterly
Saturated Soil Conditions	Quarterly	Quarterly
Plant Growth (see 1 below)	Quarterly	Quarterly
Vectors or Animal Burrowing (see 2 below)	Quarterly	Quarterly

SLUDGE/BIOSOLIDS MONITORING

The Discharger shall report the handling and disposal of all solids (e.g., screenings, grit, sludge, biosolids, etc.) generated at the wastewater system. Records shall include the name/contact information for the hauling company, the type and amount of waste transported, the date removed from the wastewater system, the disposal facility name and address, and copies of analytical data required by the entity accepting the waste. These records shall be submitted as part of the annual monitoring report.

REPORTING

In reporting monitoring data, the Discharger shall arrange the data in tabular form so that the date, sample type (e.g., effluent, solids, etc.), and reported analytical or visual inspection results are readily discernible. The data shall be summarized to clearly illustrate compliance with the General Order and NOA as applicable. The results of any monitoring done more frequently than required at the locations specified in the MRP shall be reported in the next regularly scheduled monitoring report and shall be included in calculations as appropriate.

GeoTracker Electronic Reporting Requirements: All monitoring reports and monitoring results shall be submitted to GeoTracker in accordance with the timeframes specified below and in searchable Portable Document Format (PDF). The Discharger shall follow the applicable Electronic Submittal of Information (ESI) requirements under the Facility-specific **Global Identification Number WDR100029924** at the [GeoTracker](https://geotracker.waterboards.ca.gov/esi/login.asp) database (<https://geotracker.waterboards.ca.gov/esi/login.asp>)

In order to submit reports electronically, the Discharger shall create a secure GeoTracker Electronic Submittal of Information (ESI) account and log in credentials, claim their facility by requesting access in GeoTracker, and finally uploading PDF copies of the required reports via the ESI portal as outlined in the GeoTracker ESI Beginner's Guide for Responsible Parties (Beginner's Guide) linked below. The Discharger may complete the above tasks by accessing the 'Getting Started' section on the GeoTracker [ESI webpage](https://www.waterboards.ca.gov/ust/electronic_submittal/index.html) (https://www.waterboards.ca.gov/ust/electronic_submittal/index.html).

Additional GeoTracker support information can be found at the following:

- a. 'Guides/Resources' document link in the "Tools" on the Discharger's GeoTracker ESI account.
- b. Resources on the GeoTracker ESI website, such as the [Beginner's Guide](https://www.waterboards.ca.gov/ust/electronic_submittal/docs/geotracker_esi_rp_beginners_guide_revisedoct2019.pdf) (https://www.waterboards.ca.gov/ust/electronic_submittal/docs/geotracker_esi_rp_beginners_guide_revisedoct2019.pdf)
- c. General GeoTracker Help Desk contact information:

Phone: 1-866-480-1028, Email: geotracker@waterboards.ca.gov

A transmittal letter shall accompany each monitoring report. The letter shall include a discussion of all violations of this MRP during the reporting period and actions taken or planned for correcting each violation. If the Discharger has previously submitted a report describing corrective actions taken and/or a time schedule for implementing the corrective actions, reference to the previous correspondence will be satisfactory. The transmittal letter shall contain a statement by the Discharger or the Discharger's authorized agent certifying under penalty of perjury that the report is true, accurate and complete to the best of the signer's knowledge.

In reporting monitoring data, the Discharger shall arrange the data in tabular form so that the date, sample type (e.g., effluent, groundwater, etc.), and reported analytical result for each sample are readily discernible. The data shall be summarized in such a manner to clearly illustrate compliance with waste discharge requirements and spatial or temporal trends, as applicable. The results of any monitoring done more frequently

than required at the locations specified in the Monitoring and Reporting Program shall be reported in the next scheduled monitoring report.

Laboratory analysis reports shall be included in the monitoring reports. All laboratory reports must also be retained for a minimum of three years. For a discharger conducting any of its own analyses, reports must also be signed and certified by the chief of the laboratory.

Monitoring information shall include the method detection limit (MDL) and the Reporting limit (RL) or practical quantitation limit (PQL). If the regulatory limit for a given constituent is less than the RL (or PQL), then any analytical results for that constituent that are below the RL (or PQL) but above the MDL shall be reported and flagged as estimated.

All monitoring reports that involve planning, investigation, evaluation or design, or other work requiring interpretation and proper application of engineering or geologic sciences, shall be prepared by or under the direction of persons registered to practice in California pursuant to California Business and Professions Code sections 6735, 7835, and 7835.1.

A. Quarterly Monitoring Reports

Quarterly reports shall be submitted to the Regional Water Board on the **first day of the second month after the quarter ends** (e.g., the January-March Quarterly Report is due by May 1st). The reports shall bear the certification and signature of the Discharger's authorized representative. At a minimum, the quarterly reports shall include:

1. Results of all required effluent and subsurface disposal monitoring
2. A comparison of monitoring data to the requirements (including the flow limitation), disclosure of any violations of the NOA and/or General Order, and an explanation of any violation of those requirements.
3. Copies of laboratory analytical report(s) and chain of custody form(s).

B. Annual Report

Annual Reports shall be submitted to the Regional Water Board by **March 1st following the monitoring year**. The Annual Report shall include the following:

1. Results of all required septic tank monitoring
2. Tabular and graphical summaries of all monitoring data collected during the year

23 September 2025

3. An evaluation of the performance of the wastewater treatment facility, including discussion of capacity issues, nuisance conditions, system problems, and a forecast of the flows anticipated in the next year. A flow rate evaluation as described in the General Order (Provision E.2.c) shall also be submitted.
4. A discussion of compliance and the corrective action taken, as well as any planned or proposed actions needed to bring the discharge into compliance with the NOA and/or General Order.
5. A discussion of any data gaps and potential deficiencies/redundancies in the monitoring system or reporting program.
6. The name and contact information for the wastewater operator responsible for operation, maintenance, and system monitoring.

A letter transmitting the monitoring reports shall accompany each report. The letter shall report violations found during the reporting period, and actions taken or planned to correct the violations and prevent future violations. The transmittal letter shall contain the following penalty of perjury statement and shall be signed by the Discharger or the Discharger's authorized agent:

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment."

This MRP revises MRP 2014-0153-DWQ-R5296 issued on 28 March 2019. The Discharger shall begin implementing the above monitoring program as of the date of this MRP.

Ordered by:

*Original Signed by Alexander S.
Mushegan for*

PATRICK PULUPA, Executive Officer

23 September 2025

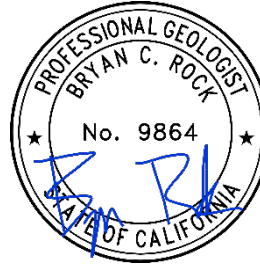
(Date)

Central Valley Regional Water Quality Control Board

TO: Alexander S. Mushegan
Supervising Water Resource Control Engineer
RCE 84208

FROM: Salvador Vargas
Water Resource Control Engineer

Bryan Rock
Senior Engineering Geologist
PG 9864



DATE: 23 September 2025

APPLICABILITY OF COVERAGE UNDER STATE WATER RESOURCES CONTROL BOARD ORDER WQ 2014-0153-DWQ, GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS, CALIFORNIA DEPARTMENT OF TRANSPORTATION, C.H. WARLOW ROADSIDE REST AREA ONSITE WASTEWATER TREATMENT SYSTEM, TULARE COUNTY

On 28 March 2019, the Central Valley Regional Water Quality Control Board (Central Valley Water Board) issued Notice of Applicability (NOA) 2014-0153-DWQ-R5296 to the California Department of Transportation (Discharger) for the CH Warlow Safety Roadside Rest Area (Warlow SRRA) Onsite Wastewater Treatment System (OWTS). The NOA enrolled the OWTS under State Water Resources Control Board (State Water Board) Water Quality Order 2014-0153-DWQ, *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). On 22 January 2024, the Discharger submitted a technical report, titled “*Sewage Disposal System Engineer’s Report for the Warlow Rest Area*,” requesting updated coverage under the General Order for OWTS upgrades. The technical report was prepared by Juan Torres, a California registered civil engineer (RCE 73048). Subsequently, an updated Form 200 was submitted on 23 June 2025.

This memorandum provides a summary of Central Valley Water Board staff’s review of the technical report and the applicability of this discharge for coverage under the General Order.

BACKGROUND

The Discharger owns and operates the Warlow SRRA and associated OWTS located on the east (northbound) side of Highway 99 about 2.5 miles south of Kingsburg in Tulare County (as shown in Attachment A of the NOA). The Warlow Rest Area was

originally constructed in 1967 as a travel stop for north and southbound autos, commercial trucks, and buses, and provides comfort stations to the traveling public. The OWTS serves the wastewater treatment needs for the comfort stations at the Warlow SRRA, which generate domestic wastewater from five toilets, two urinals, and four sinks. The OWTS does not accept septage from recreational vehicles.

Water is supplied to the Warlow SRRA via an onsite well and is used for toilet and urinal flushing, hand washing, drinking fountains, and landscape irrigation. The Warlow SRRA operates daily, and average and peak water usage at the site is approximately 1,400 gallons per day (gpd) and 3,800 gpd, respectively.

Changes have occurred at the Warlow SRRA since its original construction. According to NOA 2014-0153-DWQ-5296, the previous OWTS was designed to manage 6,000 gpd and consisted of two 4,500-gallon capacity (total capacity of 9,000 gallons) septic tanks, from which wastewater was discharged to "Leach Field A," which consists of 750 linear feet of leach field trench.

DESCRIPTION OF DISCHARGE

A 2011 Rest Area Master Plan prepared by the Discharger projected an increase in usage at the Warlow SRRA over the next 30 years. As such, the Discharger has installed low flow toilets and urinals to accommodate the projected increase in usage. The Discharger estimates that the average and peak daily water usage will be less than before (1,300 and 3,400 gpd, respectively) with the installation of the low flow equipment, even with increase comfort station usage. The Discharger has also completed OWTS upgrades, as proposed in the January 2024 technical report, to manage higher strength wastewater associated with the low flow equipment.

Upgrades to the OWTS included replacement of the septic tanks with a new 10,000-gallon septic tank, the addition of equalization, a packed-bed filter system, and a new leach field with an approximate area of 2,260 square feet. Wastewater from the comfort stations is discharged into a five-chamber septic tank (with two up flow contact chambers and two upflow media filters). The upflow contact media filters are expected to increase the removal of small, suspended particles in the wastewater, while the additional biofilm growth in the upflow media filters aid in further removal of dissolved organic matter. Wastewater from the new septic tank is then sent to a 11,900-gallon equalization tank to stage wastewater for appropriate dosing to the new recirculating packed bed filter system. Wastewater is then pumped through the recirculating packed bed filter system for aerobic treatment to reduce the total amount of nitrogen in the wastewater and then discharged into the new leach field. The new primary leach field consists of 800-linear feet of pressure dosed lines and was sized based on a design flow rate of 1,551 gpd. The RWD indicates that Leach Field A is available for overflow protection for the equalization tank; however, it is not the primary subsurface disposal area for the treated effluent (see Attachment B).

The OWTS is equipped with sensors on several of the treatment units, which activate alarms in the event of pump failure or abnormal wastewater volumes. The treatment system is set up to be operated both local and remotely via a Supervisory Control and Data Acquisition (SCADA) System.

Solids generated within the septic tank will be removed and disposed of periodically by a certified septic company with a vacuum truck.

The technical report included expected raw and treated wastewater concentrations for biochemical oxygen demand (BOD) and total suspended solids (TSS), as summarized in Table 1 below. The data are based on observed raw and treated effluent quality from the Dunnigan and Honey Lake SRRAs, respectively. According to the Discharger, the Honey Lake SRRA has a similar treatment system to the Warlow SRRA. Table 1 also includes typical domestic wastewater and treated wastewater characteristics, as recognized in the General Order (Table 1 – Summary of Domestic Wastewater Characteristics). While the expected raw wastewater quality is greater than typical septic tank influent values, likely due to the low flow toilet and urinal installations, the anticipated treated effluent concentrations are within typical septic tank effluent quality.

Table 1 - Expected Wastewater Effluent Concentrations

Constituent	Expected Raw Wastewater	Expected Treated Effluent	Typical Septic Tank Influent	Typical Septic Tank Effluent
BOD (mg/L)	470	140	155 – 286	140 – 200
TSS (mg/L)	550	63	155 – 330	50 – 100

POTENTIAL THREAT TO WATER QUALITY

Based on the design of the new leach field, the daily dry weather design flow rate from the OWTS will be 1,551 gpd. The depth to water is reported to be about 80 feet below the ground surface. In accordance with the requirements of the General Order, discharges with flow rates less than 20,000 gpd are not required to meet a nitrogen effluent limitation. The Warlow SRRA OWTS meets applicable setbacks described in the General Order with domestic wells being over 1,00 feet away from the septic tanks and leach fields as well as the OWTS components being further than five feet away from the property lines.

Surficial soils are reported to consist of silty sand in the upper four feet and medium- to fine-grained sand to about eight feet below the ground surface (bgs). Percolation testing results from 2020 ranged from 15 to 30 minutes per inch (MPI). According to *Table 5, Minimum Depth to Groundwater and Minimum Soil Depth from the Bottom of Dispersal System* of the General Order, the minimum depth to groundwater requirement for percolation rates between 5 and 30 MPI is 8 feet bgs, and, as previously mentioned, the depth to groundwater is reported to be about 80 feet bgs. The septic tanks will be

pumped periodically by local septic tank haulers that dispose of the solids at a nearby wastewater treatment plant.

MONITORING REQUIREMENTS

Monitoring requirements included in the following sections from Attachment C of the General Order are appropriate for this discharge:

- Septic Tank Monitoring
- Subsurface Disposal Area
- Solids Disposal Monitoring

SALT AND NITRATE CONTROL PROGRAMS

The Central Valley Water Board adopted Basin Plan amendments incorporating new programs for addressing ongoing salt and nitrate accumulation in the Central Valley at its 31 May 2018 Board Meeting (Resolution R5-2018-0034). The Basin Plan amendments became effective on 17 January 2020 and were revised by the Central Valley Water Board in 2020 with [Resolution R5-2020-0057](https://www.waterboards.ca.gov/centralvalley/board_decisions/adopted_orders/resolutions/r5-2020-0057_res.pdf) (https://www.waterboards.ca.gov/centralvalley/board_decisions/adopted_orders/resolutions/r5-2020-0057_res.pdf).

Pursuant to the Basin Plan amendment, the Discharger was sent a Notice to Comply in January 2021 (CV SALTS ID: 3561) with instructions and obligations for the Salt Control Program within one year of the amendments. On 23 June 2021, the Discharger submitted a Notice of Intent (NOI) for the Salt Control Program and is participating in the prioritization and Optimization Study (P&O Study).

For the Nitrate Control Program, the OWTS and disposal area are within Basin 5-51.60 (Tulare Lake – Alta HA), a Priority 1 basin/sub-basin. On 26 October 2022, the Discharger was sent a Notice to Comply for the Nitrate Control Program. On 25 March 2025, the Discharger entered into an agreement with the Kings Water Alliance Management Zone for compliance with the Management Zone Permitting Approach (Pathway B) for the Nitrate Control Program. A 22 September 2025 email from the Kings Water Alliance indicates that the OWTS is in good standing with the Management Zone.

Under the Nitrate Control Program, dischargers that cause or contribute to nitrate pollution in groundwater must qualify for a limited term “exception” from meeting nitrate limits. Compliance time schedules must be as short as practicable and are not to exceed 35 years. The Central Valley Water Board will only grant exceptions upon finding that all elements of the Board’s Exceptions Policy are met. For nitrate, the Exceptions Policy dictates that exceptions will not be considered unless an adequate supply of clean, safe, reliable and affordable drinking water is available for those who have been adversely affected by the non-compliant discharge.

Management Zones in Priority 1 Basins were required to submit Management Zone Implementation Plans (MZIPs). The Kings Water Alliance submitted an MZIP on 5 September 2023. The MZIP was deemed complete by the Central Valley Water Board's Executive Officer in November 2023. The MZIP contains a proposal for how dischargers within the Kings Water Alliance will meet the requirements of the Nitrate Control Plan and the Exceptions Policy.

To meet the requirements of the Nitrate Control Plan, the Kings Water Alliance MZIP includes sector-based Nitrate Reduction Programs, including one for Non-15 dischargers, including the Discharger. The MZIP proposes that the Discharger prepare and submit a facility-specific Nitrate Reduction Work Plan that would characterize the facility's impact on groundwater, quantify the facility's nitrate loading to the Upper Zone of groundwater, estimate the necessary improvements to the facility's discharge to comply with Groundwater Protection Target(s) and/or other developed compliance metrics, and provide an implementation schedule that will ensure that the facility complies with the Nitrate Control Program.

[More information on the Salt and Nitrate Control Program](https://cvsalinity.or/public-info) may be found on the internet (<https://cvsalinity.or/public-info>).